

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

Appellate No. SYN-CA4-26-CV-4103 · Order Denying Appellate Stay

Entered February 6, 2026

The City of Norvale moves to stay the January 23 preliminary injunction pending this interlocutory appeal. The Piedmont Booksellers Guild opposes, and the City has replied. The motion is denied.

Federal Rule of Appellate Procedure 8 ordinarily requires a stay applicant to seek relief first in the district court. The City complied. It moved below on January 26, the Guild responded, the City replied, and the district court denied a stay on January 28 with stated reasons. The appellate motion includes those applications and relevant portions of the record as Local Rule 8 contemplates. The Court therefore reaches the request without relying on an assertion that district-first practice was impracticable.

A stay is an exercise of judicial discretion, not a consequence of filing an appeal. Under *Nken v. Holder*, 556 U.S. 418, 433–35 (2009), the applicant must address likely success, irreparable injury absent relief, substantial injury to others, and the public interest. Likelihood and irreparable harm are the most critical considerations. Expedition does not reduce the required showing.

The appeal is limited to preliminary relief. No final judgment has resolved the Guild's First Amendment claims, and nothing in this order forecasts the disposition after merits briefing. The question now is whether the City has justified suspending the existing protection during review.

Application of the Stay Factors

The City presents substantial questions concerning the injunction's specificity and its omission of an express security determination. The operative paragraph restrains the named ordinance while preserving categories of neutral safety authority described in the accompanying memorandum. Appellate review may require a more detailed statement of prohibited acts and an explicit exercise of discretion under Rule 65(c). Those possible corrections do not establish a strong likelihood that the Guild's central interim protection will be reversed.

On the present record, the district court treated the ordinance as viewpoint neutral yet found an insufficient fit between operational needs and burdens triggered by paid status. The City may directly obtain time, format, location, equipment, expected attendance, loading, and access information. Its pilot materials do not isolate a service attributable to every \$45 speaker increment, and the amendment provisions contain no fixed response period. The City has not shown likely error sufficient to restore those requirements during the approaching event.

Irreparable municipal injury is also unproven. The injunction leaves officials able to enforce reservations, lawful capacity, traffic control, emergency access, sanitation, physical layout, competing-use rules, and conditions based on materially changed event facts. The City identifies no necessary February measure disabled by that retained authority. Temporary uncertainty and uncollected charges, on this record, do not demonstrate harm that later appellate relief cannot address.

The Court credits the City's good-faith responsibility for Cedar Commons and does not require a past violent episode before a genuine hazard may be managed. The denial rests on the breadth of remaining tools, not on an assumption that planning is unnecessary.

Equities, Public Interest, and Disposition

A stay would place immediate costs and roster conditions back on a program scheduled for February 14. Invitations, travel, honoraria, advertising, and seller participation cannot be reconstructed after the date passes. The same planning issue returns before fairs announced for April, June, August, October, and December. The Guild has committed to provide changing operational details and remains subject to written safety measures grounded in those details.

The public interest favors continued coordination without reinstating the disputed proxy. Free literary programming serves readers and speakers; orderly access serves pedestrians, transit users, nearby businesses, and emergency personnel. The district order accommodates both interests pending fuller review. The City's proposed three-business-day process is constructive, but it does not require suspension and may guide the parties' voluntary communications.

The request for a full stay is DENIED. The alternative request to restore speaker-identity and topic requirements is also DENIED. This ruling does not prevent the City from seeking clarification in the district court, pursuing an appellate argument concerning Rule 65(c) or (d), or requesting targeted relief if a documented material change creates a concrete operational dispute. Nor does it restrict neutral authority that the preliminary injunction expressly leaves available.

The Clerk shall provide immediate electronic notice and continue processing the appeal in view of the recurring event dates. The January 23 injunction remains in force unless modified by a later lawful order. No bond is set and no merits relief is awarded through this stay ruling. Entered by the Court on February 6, 2026.